

MEET AND CONFER DEMAND – FRAUD ON THE COURT

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VIA EMAIL AND U.S. MAIL

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CSAA Insurance Exchange c/o Counsel of Record

Michael R. Chambers, Esq. (SBN 132394) Carbone, Smith & Koyama c/o Counsel of Record

Re: **MEET AND CONFER DEMAND REGARDING FRAUD ON THE COURT** *Rosario v. Abdelhalim*, Case No. CGC-21-594102 (Underlying Action) *Rosario v. CSAA Insurance Exchange, et al.*, Case No. CGC-25-631801 (Independent Action in Equity) *Rosario v. CSAA Insurance Exchange*, Case No. CGC-25-631802 (Insurance Fraud Action) Appeal No. A173827 (First Appellate District, Division Three)

Dear Counsel:

I. PURPOSE OF THIS LETTER

This letter constitutes a formal demand to meet and confer pursuant to the obligations of candor and good faith imposed by California law and the California Rules of Professional Conduct. It concerns the independent action in equity filed as Case No. CGC-25-631801, which seeks to set aside the judgment entered in the underlying action, Case No. CGC-21-594102, on the grounds of extrinsic fraud – specifically, fraud on the court committed through false representations by your office regarding receipt, possession, and prior production of critical incident recordings, including the 911 audio, body-worn camera footage, and CAD logs.

I write to you directly because the certified record of the underlying action contains a sequence of representations made by your office to the Court that are irreconcilable with the sworn testimony and documentary evidence in the same record. The contradictions are not a matter of interpretation. They are documented on the Reporter's Transcript and in the Clerk's Transcript. I am requesting a meet and confer to determine whether your office is prepared to address these contradictions voluntarily before the Court is asked to resolve them.

This letter sets forth the factual and legal basis for the fraud-on-the-court claim in detail so that you have a full and fair opportunity to respond. I am not ambushing anyone. I am laying out exactly what the certified

record shows, exactly what the law requires, and exactly what I will be asking the Court to do if this matter is not resolved.

II. THE FALSE REPRESENTATIONS YOUR OFFICE MADE TO THE COURT

The record documents a sequence of false representations by your office regarding receipt and possession of the 911 audio recording, body-worn camera footage, CAD logs, and a supplemental police report. These representations were made in written declarations, in motions in limine, and in open court, and the Court relied on them to make procedural and evidentiary rulings that deprived me of a fair opportunity to present dispositive evidence at trial.

A. Written Declarations (January 17, 2025)

On January 17, 2025, Ms. Navaratnasingham filed Motions in Limine Nos. 1 through 19, supported by her signed Declaration. Among them:

MIL No. 6 asserted that recorded materials, including the 911 call audio, “were not produced in discovery.” (Clerk’s Tr. Vol. 1, pp. 149-151.)

MIL No. 17 stated: “Defendant has no idea where this 911 call log or audio recording came from” and that the materials “were not produced during discovery, rather produced at the eleventh hour prior to trial.” (Clerk’s Tr. Vol. 1, p. 238.)

These were not legal arguments about admissibility. They were factual representations about receipt and possession, made under penalty of perjury.

B. Oral Statements at the February 18, 2025 Pretrial Hearing

At the February 18, 2025 pretrial hearing before the Honorable Garrett L. Wong, immediately after Jeremy Jessup of the Dolan Law Firm testified under oath that the 911 audio, body-worn camera footage, and CAD log had been “produced to defense counsel” and “served on them in the production for discovery as well at Mr. Rosario’s deposition” in August-September 2022 (Hearing Tr. pp. 139-140), Ms. Navaratnasingham stated:

- The 911 call was “news to me.” (Hearing Tr. p. 141, ll. 4-11.)
- “Our office did not receive the 911 call until the day of the MSC.”
- The materials were “not produced in the normal course of discovery.” (Hearing Tr. pp. 163-165, 176-177.)

Mr. Reyna was present throughout and did not correct any of these statements.

C. Trial Day 7 (April 16, 2025)

At trial on April 16, 2025:

- Mr. Reyna stated the supplemental police report was “not anything that we received as part of the subpoena.” (RT 7, approx. l. 2874.)
- Mr. Reyna stated he was “not sure what recording” I was referring to regarding the 911 call. (RT 7, ll. 2990-2994.)

D. Why These Representations Were False

Each of these statements is contradicted by the certified record on multiple grounds, and I want you to understand that I am not relying on inference or speculation. I am relying on your own words, your own filings, your own subpoena, and the sworn testimony of a fellow officer of the court.

First, Mr. Jessup testified under oath on February 18, 2025 that the 911 audio, approximately five body-worn camera videos, and the CAD log were produced to defense counsel and served on them during discovery and depositions in August-September 2022. (Hearing Tr. pp. 139-140.) Ms. Navaratnasingham heard that testimony. She responded to it directly. Her response – “news to me” – contradicted it.

Second, the Substitution of Attorney (Transaction ID #69953800, filed May 4, 2023) establishes that the defense file was transferred from Michael R. Chambers and Carbone, Smith & Koyama to Phillips, Spallas & Angstadt LLP on that date. Your firm held that file for approximately 20 months – 656 days – before Ms. Navaratnasingham told the Court the 911 evidence was “news to me.”

Third, Mr. Reyna himself issued a Deposition Subpoena for Production of Business Records to the San Francisco Police Department on February 1, 2024 (Compex Order CA1147102-021). That subpoena explicitly requested the “9-1-1 CALL” and “ANY AND ALL VIDEO RECORDINGS FROM BODY-WORN CAMERAS.” Mr. Reyna signed it. His claim at trial fourteen months later that he was “not sure what recording” I was referring to is irreconcilable with having specifically requested that recording by name.

Fourth, and most critically: on April 16, 2025, minutes after Mr. Reyna professed confusion about the 911 recording, Ms. Navaratnasingham stated on the certified record: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 214, ll. 13-15.) She then described having “five videos” and curating them into “about 8 or 9 minutes” for the jury. That statement – casual, familiar, unqualified – establishes that the Dolan origin of the body-worn camera footage was an established, recognized fact within your trial team. One does not casually name a specific law firm as the source of evidence if one is genuinely ignorant of that evidence’s existence. The body-worn camera footage and the 911 audio were part of the same discovery production. Mr. Jessup testified they were served together. Receipt of the body cams from Dolan is receipt of the 911 from Dolan. They traveled together. Under Code of Civil Procedure section 2031.280 and *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787, receipt of one document in a production establishes constructive receipt of all documents in that production.

The April 16 admission is a confession. It proves the “news to me” statement was false, the “not produced in discovery” declaration was false, and the “not sure what recording” statement was false.

III. HOW THE COURT RELIED ON YOUR REPRESENTATIONS

These false representations were not made to the jury. They were made to the judge, and the judge relied on them to make specific procedural and evidentiary rulings. I want to be precise about this because the reliance is documented on the certified transcript itself, and the causal chain from your misrepresentation to the Court's ruling to the prejudice I suffered is not inferred. It is recorded.

Reliance Instance 1: Continuance Denial. On February 18, 2025, the Court denied my continuance request. (Hearing Tr. p. 181.) The Court reasoned that I had had the materials "since August of 2024" (p. 178) and that the defense was "not blocking" admission (p. 182). That framing depended entirely on Ms. Navaratnasingham's representation that the defense "did not receive the 911 call until the day of the MSC" and that it was "news to me." Had the Court known your firm had possessed the body cams and the 911 audio in its own file since May 2023, the continuance calculus would have shifted fundamentally.

Reliance Instance 2: MIL Grants. The Court granted MIL No. 17 "without prejudice subject to discovery being produced." (Hearing Tr., Feb. 18, 2025.) The Court's willingness to grant that exclusionary relief was premised on your assertion that the materials were of "unknown origin" and "not produced in discovery." The April 16 admission proves your firm had the materials from Dolan all along.

Reliance Instance 3: Supplemental Police Report Exclusion. After Mr. Reyna represented that the supplemental report was "not anything that we received as part of the subpoena," the Court excluded it, stating: "It is not evidence" and "it is not in the report." (RT 7, ll. 2888-2896.) That exclusion prevented me from using the supplement to corroborate my account. The Court's ruling was made in direct reliance on Mr. Reyna's representation.

Reliance Instance 4: 911 Call Deferral. After Mr. Reyna said he was "not sure what recording" I was referring to, the Court deferred admission of the 911 call, requiring me to testify first. (RT 7, ll. 3024-3057.) That tactical delay was based on Mr. Reyna's feigned confusion – from a man who had signed a subpoena specifically requesting that very recording by name.

Reliance Instance 5: "I see. Okay." The Court accepted Ms. Navaratnasingham's "news to me" representation without conducting any verification inquiry. The Court's response – "I see. Okay." (Hearing Tr. p. 141, l. 15) – demonstrates that the Court treated your counsel as a candid officer of the court, as it was legally entitled to do. Under *Blanton v. Womancare, Inc.* (1985) 38 Cal.3d 396, 403: "A party is entitled to rely on the candor of officers of the court." Your office exploited that institutional trust.

IV. WHY THIS IS AN EQUITY CASE – AND WHY IT CANNOT BE DISMISSED AS A MERE DISCOVERY DISPUTE

I am writing to you in this level of detail because I want you to understand why the independent action in equity (CGC-25-631801) is not a frivolous filing, is not a relitigation of trial issues, and is not subject to dismissal under the litigation privilege, the anti-SLAPP statute, or demurrer.

This is an equity case – not an appeal of trial error – because the nature of the wrong places it squarely within

the court's inherent equitable power to vacate judgments procured by extrinsic fraud.

Extrinsic fraud occurs when a party is deprived of the opportunity to present a claim or defense because fraud prevented a real contest on the merits. (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) An independent action in equity lies to set aside such a judgment. (Code Civ. Proc., sec. 187; *Kulchar, supra*, 1 Cal.3d at p. 472; *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735.) The false representations your office made were not made to the jury for the jury to weigh, which would be intrinsic fraud. They were made to the judge, who relied on them to shape the procedural and evidentiary framework of the trial. I could not "cross-examine" the Court's reliance on your representations. "Where the fraud goes to the regularity of the proceedings, rather than to the merits, and prevents the aggrieved party from having a fair hearing, the fraud is extrinsic." (*Caldwell v. Taylor* (1933) 218 Cal. 471, 476.)

The direct appeal (A173827) addresses the Court's independent instructional error: the deliberation-stage failure to provide Vehicle Code sections 22107 and 21804(a) when the jury asked for them. But the appeal cannot adjudicate whether your office lied to the trial judge. A reviewing court on direct appeal is limited to the record as it was presented; it cannot conduct a fact-finding inquiry into whether "news to me" was a knowing falsehood. The independent equity action is the recognized procedural vehicle for that claim.

The Court's discretion was poisoned by your representations. "[A] court may be said to have abused its discretion when it acts on the basis of incorrect or misleading information." (*In re Marriage of Rosevear* (1998) 65 Cal.App.4th 673, 682.) When your office misrepresented receipt of the records, it stripped the trial court of its ability to make a valid discretionary ruling. The judge was not managing the trial. The judge was being managed by the fraud. Only equity can undo that.

Structural fraud defies harmless error analysis. "[W]hen attorney misconduct is sufficiently egregious, it may constitute a denial of due process, rendering the trial fundamentally unfair regardless of the strength of the evidence." (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) The exclusion of evidence was procured by fraud. The process was corrupted at the structural level. The standard *Watson/Chapman* prejudice frameworks do not apply.

I also want to be clear about the defense theories that will not work:

The **litigation privilege** (Civ. Code, sec. 47(b)) does not apply to fraud on the court. The California Supreme Court held this categorically in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. This action seeks equitable vacatur, not tort damages for statements made in court.

The **anti-SLAPP statute** (Code Civ. Proc., sec. 425.16) does not apply to an independent equity action challenging a judgment procured by fraud. *Finton Construction, Inc. v. Bidna & Keys APLC* (2015) 238 Cal.App.4th 200, 213: "The gravamen of [the] complaint is the alleged fraud that [defendants] committed on the court, not [their] exercise of the right of petition."

Judicial estoppel bars your client from retaining a verdict procured by a position your own later statement proves was false. Position A: "news to me," "did not receive until MSC," "not produced in discovery." Position B: "Sure. They were provided by Dolan." Under *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183, the defense cannot have it both ways.

V. THE EVIDENCE THAT WAS SUPPRESSED AND THE PREJUDICE

The evidence that your office's false representations prevented me from presenting in a timely, orderly manner at trial includes:

1. **A party admission against interest.** Defendant Abdelhalim told the 911 operator: "BOOM! I just hit him. HIT HIM. There was barely anything." He later authenticated the recording under oath at trial: "Yes. That is my voice." (RT 8, l. 1979.)
2. **Eyewitness body-worn camera footage.** Officer Thompson's BWC captured eyewitness Dustin Rosemond stating: "The man in the van hit the guy" and "That man in the van hit the guy who was laying on the ground." (RT 10, p. 39, ll. 21-23; RT 10, p. 59, ll. 3-4.)
3. **CAD corroboration** of the emergency dispatch timeline.
4. **The supplemental police report**, which would have corroborated my account and which was excluded after Mr. Reyna told the Court it was "not anything that we received as part of the subpoena."

The verdict was 9-3 – the minimum civil majority. A single juror changing sides would have altered the outcome. The suppressed evidence includes the defendant's own words admitting he struck me. This is not speculative prejudice. It is structural.

VI. THE ANATOMY OF INSTITUTIONAL RELIANCE AND WHY EQUITY IS THE ONLY REMEDY

I want to explain why a meet and confer on this matter is not optional and why this case will not go away.

The fraud your office committed was not a single misstatement that can be characterized as a good-faith mistake. It was a continuous architecture of deceit that moved through the judicial process from January 2025 through the entry of judgment on April 25, 2025. The Court's reliance was not a single moment of credulity. It was a systematic, compounding series of institutional dependencies in which each false representation reinforced the last, narrowed the Court's future options, and progressively locked me out of the ability to present the evidence that would have changed the outcome. That compounding quality is precisely what makes this extrinsic rather than intrinsic fraud, and precisely what makes equity the only adequate remedy.

On January 17, 2025, Ms. Navaratnasingham filed MIL Nos. 6 and 17 with her signed Declaration asserting factual predicates about non-receipt and unknown provenance. The Court received those as factual representations from an officer of the court. On February 18, 2025, after Mr. Jessup testified under oath that the materials had been produced to the defense in discovery, Ms. Navaratnasingham told the Court the 911 evidence was "news to me." The Court responded: "I see. Okay." That was the institutional act of reliance. The Court did not conduct a verification inquiry. It did not ask Ms. Navaratnasingham to reconcile her statement with Jessup's sworn testimony. It accepted the representation because it was entitled to rely on the candor of officers of the court.

From that moment forward, the Court’s entire framework for managing the evidence at trial was built on a false foundation. When the Court denied my continuance request on February 18, it did so in a factual universe that Ms. Navaratnasingham had constructed: one in which I bore the entire burden of authenticating and presenting materials that your firm had possessed for years. When the Court granted MIL No. 17, it did so because your office told the Court the materials were of unknown origin. When the Court excluded the supplemental police report on April 16, it did so because Mr. Reyna told the Court the report was “not anything that we received as part of the subpoena.” When the Court deferred the 911 call, it did so because Mr. Reyna said he was “not sure what recording” I was referring to. Each ruling compounded the last. By the time the jury deliberated, the evidentiary landscape was the product of a cascade of rulings that traced back to the initial false statement: “news to me.”

Then came Ms. Navaratnasingham’s April 16 admission. “Sure. They were provided by Dolan. He has had them for whatever, sure.” That casual, familiar, unqualified statement proves she knew the materials came from Dolan all along. She named the specific law firm that provided the evidence years earlier without hesitation. The dismissive phrasing – “for whatever, sure” – reveals that the Dolan origin was an established fact within your trial team. The body-worn camera footage and the 911 audio were part of the same discovery production. Mr. Jessup testified they were served together. Receipt of the body cams from Dolan is receipt of the 911 from Dolan.

At no point between the April 16 admission and the verdict on April 25 did either Ms. Navaratnasingham or Mr. Reyna withdraw, correct, or amend any prior representation. Under California Rules of Professional Conduct, rule 3.3(a)(1), a lawyer must not “knowingly make a false statement of material fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer.” The duty to correct is affirmative and continuing. Neither attorney discharged that duty.

This cascading quality is what distinguishes the fraud from an isolated evidentiary dispute. A single erroneous ruling can be reviewed for harmless error. A pattern of rulings, all flowing from a common false premise planted by an officer of the court, is structural corruption. It cannot be unwound ruling by ruling because the rulings are interdependent. The continuance denial affected the MIL posture, which affected the foundation burden, which affected the supplemental report exclusion, which affected the 911 deferral, which affected the jury’s access to the evidence. Remove the initial false premise and the entire cascade collapses. That is why equity must intervene at the root – the judgment itself.

The appellate court cannot remedy this. On direct appeal, the reviewing court examines the trial court’s legal errors. It cannot conduct a fact-finding inquiry into whether “news to me” was a knowing falsehood. It cannot subpoena the defense file to determine whether the 911 audio was physically contained in it when PSA received it on May 4, 2023. It cannot take testimony from Mr. Jessup. It cannot order discovery into CSAA’s claims-handling files. Those are fact-bound inquiries that require a trial-level proceeding with evidence, witnesses, and the court’s equitable jurisdiction. The independent action in equity is the only procedural vehicle available.

VII. WHAT I AM ASKING YOU TO DO

I am requesting a meet and confer to discuss the following:

1. **Acknowledgment of the Record.** The certified Reporter's Transcript and Clerk's Transcript document every statement referenced in this letter. The April 16, 2025 admission (RT 7, p. 214, ll. 13-15) is irreconcilable with the prior representations. I am asking whether your office disputes any of the transcript citations set forth herein.
2. **Correction of Representations.** Under California Rules of Professional Conduct, rule 3.3(a)(1), your office has a continuing duty to correct false statements of material fact previously made to the tribunal. To date, no correction has been filed. I am asking whether your office intends to correct the record.
3. **Stipulated Vacatur or Resolution.** Given the state of the record, I am asking whether your office and CSAA Insurance Exchange are prepared to discuss a stipulated vacatur of the judgment in CGC-21-594102 and a retrial on a fair record, or any alternative resolution that addresses the fraud on the court.
4. **Preservation of Evidence.** I am demanding that Phillips, Spallas & Angstadt LLP, CSAA Insurance Exchange, Michael R. Chambers, and Carbone, Smith & Koyama preserve all documents, communications, files, and electronic records relating to (a) the defense file in CGC-21-594102, including the physical or electronic media containing the 911 audio, body-worn camera footage, and CAD logs; (b) all communications between PSA, CSAA, Chambers, and Carbone Smith & Koyama regarding the production history, chain of custody, and provenance of these materials; (c) all communications regarding the preparation and filing of Motions in Limine Nos. 6 and 17; and (d) all communications regarding the representations made at the February 18, 2025 hearing and the April 16, 2025 trial proceedings.
5. **CSAA's Role.** CSAA Insurance Exchange funded, directed, and benefited from the defense. Under *Howard v. American National Fire Insurance Co.* (2010) 187 Cal.App.4th 498, 527-528, an insurer that selects and retains counsel is vicariously liable for the conduct of that counsel. Under Civil Code section 2338, a principal is liable for the fraudulent representations of its agent. I am asking CSAA to participate in the meet and confer and to address its institutional responsibility.
6. **Chambers and Carbone Smith & Koyama.** The defense file was transferred from your office to PSA on May 4, 2023. If the file was transferred without an inventory or documentation of the production history, that transfer proximately enabled the false representations that followed. I am asking whether Chambers and Carbone Smith & Koyama are prepared to address the circumstances of the file transfer.

VIII. THE RECORD CITATIONS

For your reference, the following is a summary of the key transcript citations underlying this demand. Each is drawn from the certified Reporter's Transcript or Clerk's Transcript in CGC-21-594102:

Citation	Speaker	Content
Hearing Tr. Feb. 18, 2025, pp. 139-140	Jessup (sworn)	911, BWC, and CAD “produced to defense counsel” and “served on them in the production for discovery”
Hearing Tr. Feb. 18, 2025, p. 141, ll. 4-11	Navaratnasingham	“news to me”
Hearing Tr. Feb. 18, 2025, p. 141, l. 15	Court	“I see. Okay.” (accepted without inquiry)
Hearing Tr. Feb. 18, 2025, pp. 163-165, 176-177	Navaratnasingham	Reinforced “not produced in normal course of discovery”
Hearing Tr. Feb. 18, 2025, p. 181	Court	Continuance denied
MIL No. 6, filed Jan. 17, 2025	Navaratnasingham/PSA	Materials “were not produced in discovery”
MIL No. 17, filed Jan. 17, 2025	Navaratnasingham/PSA	“Defendant has no idea where this 911 call log or audio recording came from”
RT 7 (Apr. 16, 2025), approx. l. 2874	Reyna	Supplemental report “not anything that we received as part of the subpoena”
RT 7 (Apr. 16, 2025), ll. 2888-2896	Court	Excludes supplemental report: “It is not evidence”
RT 7 (Apr. 16, 2025), ll. 2990-2994	Reyna	“not sure what recording”
RT 7 (Apr. 16, 2025), ll. 3024-3057	Court	Defers 911 admission
RT 7 (Apr. 16, 2025), p. 214, ll. 13-15	Navaratnasingham	“Sure. They were provided by Dolan. He has had them for whatever, sure.”
RT 8 (Apr. 17, 2025), l. 1979	Abdelhalim	“Yes. That is my voice.” (authenticates 911)
Feb. 1, 2024 Deposition Subpoena (Compex Order CA1147102-021)	Reyna	Explicitly requested “9-1-1 CALL” and “ANY AND ALL VIDEO RECORDINGS FROM BODY-WORN CAMERAS”

IX. DEADLINE AND CONSEQUENCES

I am requesting a response to this meet-and-confer demand within **twenty-one (21) calendar days** of the date of this letter – by **March 31, 2026**. The response should indicate whether your office is prepared to meet and confer on the issues identified above, and if so, propose dates and a format (in person, telephonic,

or video conference).

If I do not receive a substantive response by the deadline, I will proceed with the independent action in equity (CGC-25-631801) without further meet-and-confer efforts. I will also bring the failure to respond to the Court's attention as evidence of the defense's unwillingness to address the documented contradictions in the record.

I want to be direct: the certified record is a closed circuit. The "news to me" statement and the "provided by Dolan" admission are both on the Reporter's Transcript, in the same proceeding, from the same speaker. The February 1, 2024 subpoena requesting the 911 call by name is in the file. Defendant Abdelhalim authenticated the 911 recording under oath. The 9-3 verdict was the minimum civil majority. These facts cannot be altered, contradicted, or explained away. Every available defense theory – good-faith mistake, litigation privilege, anti-SLAPP, intrinsic fraud, harmless error, plaintiff's-own-fault – is foreclosed by the certified record, as detailed in this letter and in the memoranda filed with the Court.

I am offering an opportunity to resolve this matter before the Court must do so. I urge you to take it seriously.

X. NOTICE OF DAMAGES AND ANCILLARY EQUITABLE MONETARY RELIEF

I am putting you on notice that in addition to the primary equitable relief of vacatur and a new trial, I intend to seek ancillary equitable monetary relief – restitutionary in nature and incident to vacatur – against all Defendants for losses proximately caused by the fraudulent procurement of the judgment. I will present competent evidence and records to substantiate each category of damages described below at the appropriate time. This section is provided so that you understand the scope of the harm your conduct has caused and can evaluate it in the context of this meet-and-confer demand.

A. The Fraud Period: September 2024 Through the Present

The damages I have sustained are temporally bounded to what I refer to as the "fraud period." That period begins no later than September 2024 – when CAD identifiers were provided to Mr. Reyna on September 9, 2024, and when the defense's suppression posture was already in motion in anticipation of trial – and runs through the present. The fraud period encompasses the filing of the false MIL declarations on January 17, 2025; the February 18, 2025 pretrial hearing at which Ms. Navaratnasingham made the "news to me" representation and the Court relied on it; the trial in April 2025, at which Mr. Reyna made additional false representations; the entry of judgment on April 25, 2025; and the entirety of the post-judgment period during which I have been forced to investigate the fraud, reconstruct the record, and prepare and prosecute the independent action in equity and the related proceedings.

Every category of damages set forth below is confined to losses incurred during and as a direct consequence of this fraud period. I do not seek collision damages. I do not seek recovery for the ordinary burdens of litigation. I seek recovery only for the incremental harm imposed by the fraud on the court.

B. Out-of-Pocket Record, Evidence, and Process Costs

I have incurred substantial out-of-pocket costs directly caused by the need to fight through the false factual landscape your office constructed. These costs include, but are not limited to, reporter's transcripts, clerk's transcripts, certified copies, copying and printing, exhibit creation and compilation, audio and video transcription, authentication costs, storage media, postage and courier expenses, filing fees, service fees, and travel, parking, and mileage for hearings and court appearances tied to the fraud dispute. I will present itemized records, receipts, and invoices to substantiate each expenditure at the appropriate time.

C. Fraud-Delta Lost Earnings and Loss of Business Opportunities

The fraud on the court has consumed an extraordinary amount of my productive time from September 2024 through the present – time that would otherwise have been devoted to my professional work and business pursuits. Prior to the fraud period, my professional earning capacity was approximately \$30,000 per month. Since the fraud period began, I have been forced to divert substantial portions of my working time to emergency foundation work, repeated motions and appearances that would not have been necessary but for the false “non-receipt/unknown provenance” premise, record reconstruction, transcript analysis, preparation and prosecution of the equity action and related proceedings, and the ongoing burden of managing a multi-front litigation that exists solely because your office made false representations to the Court.

This diversion of time has resulted in lost salary, lost business opportunities, and diminished professional capacity that I will document and substantiate with competent evidence, including records of earnings history, business activity, and the causal connection between the fraud-driven litigation burden and the loss of productive capacity. The lost earnings are segregated from any time I would have spent in ordinary litigation; they represent only the incremental time imposed by the fraud itself.

I also intend to present evidence of specific business opportunities that were lost or foregone during the fraud period as a direct consequence of the time, attention, and resources consumed by the need to address the fraud on the court. I will present records and evidence sufficient to establish the causal connection between the fraud and those lost opportunities.

D. Additional Medical, Therapy, and Pharmacy Expenses

The fraud-driven litigation strain imposed during the fraud period has caused and exacerbated documented physical and medical conditions. I have incurred incremental medical, therapy, and pharmacy expenses – including therapy visits, medications, copays, and related care – that are temporally tied to the fraud period and causally connected to the litigation strain imposed by the fraud, as distinguished from the collision itself. I will present treatment records, billing statements, pharmacy records, and other competent evidence to substantiate these expenses and their causal connection to the fraud-driven period.

E. Emotional Distress, Psychological Harm, and Physical Suffering

The fraud on the court has caused me significant emotional distress, psychological harm, and physical suffering during the fraud period. Being forced to litigate through a corrupted process – watching the Court rely on representations I knew to be false, being accused of late disclosure and fabrication when it was the defense

that had suppressed the evidence, enduring a trial on a distorted record, and then being forced to reconstruct the entire chain of fraud after judgment – has imposed a severe emotional and psychological toll.

To the extent the Court permits recovery of emotional distress and psychological damages as ancillary equitable monetary relief incident to vacatur, or to the extent such damages are recoverable under applicable law in connection with the fraud on the court, I intend to seek such recovery. I will present competent evidence, including medical and therapeutic records, to document the emotional, psychological, and physical harm sustained during the fraud period. I reserve the right to present expert testimony on the nature and extent of such harm if appropriate.

I note that California courts have recognized that when attorney misconduct is “sufficiently egregious,” it may constitute a denial of due process rendering the trial “fundamentally unfair regardless of the strength of the evidence.” (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.) The emotional and psychological toll of enduring such a fundamentally unfair process is a concrete, documentable harm that supports equitable intervention.

F. Sanctions Under Code of Civil Procedure Section 128.7

As set forth in the Motion for Relief Based on Extrinsic Fraud (Document 09), I seek sanctions under Code of Civil Procedure section 128.7 against Ms. Navaratnasingham, Mr. Reyna, and Phillips, Spallas & Angstadt LLP for certifying factual contentions in the MIL filings that the April 16, 2025 admission proves were knowingly false. I will present evidence and argument in support of sanctions at the appropriate time.

G. The Primary Relief: Vacatur and Retrial

The most significant relief I seek is not monetary. It is the order vacating the judgment entered in CGC-21-594102 and granting a new trial on a fair and truthful record. The fraudulently procured judgment extinguished a meritorious personal injury claim supported by the defendant’s own 911 admission, eyewitness body-worn camera footage, and CAD corroboration, on a 9-3 minimum-majority verdict. Vacatur and retrial restore the claim and allow a jury to decide liability on a complete, undistorted record.

H. Reservation of Additional Damages

I expressly reserve the right to seek additional categories of damages in the related proceedings, including but not limited to: punitive damages against CSAA Insurance Exchange in CGC-25-631802; Prentice attorney-fee damages for forced third-party litigation costs in CGC-25-631802; UCL restitution and injunctive relief in CGC-25-631802; and the full spectrum of personal injury damages at retrial following vacatur. The damages sought in this action are deliberately limited to ancillary equitable monetary relief incident to vacatur; the broader damages architecture is preserved in the related proceedings.

I. Summary of Damages Notice

I will present competent evidence, records, documentation, and testimony to substantiate every category of damages identified above. The fraud period beginning in September 2024 has now extended for approximately eighteen months, during which I have sustained continuous and compounding losses – financial,

professional, medical, emotional, and psychological – all traceable to the false representations your office made to the Court and the Court’s reliance on those representations.

At my documented pre-fraud earning capacity of approximately \$30,000 per month, the lost earnings and business opportunity costs alone represent a substantial claim, and they continue to accrue with each month that the fraudulently procured judgment remains in place and the equity action remains unresolved. The out-of-pocket costs, medical expenses, and emotional toll are in addition to the earnings loss. I do not state a specific total at this time because the damages continue to accrue and because I will present the precise figures with supporting evidence at the appropriate stage of the proceedings. But I want you to understand the magnitude of what your office’s conduct has cost me, and I want you to evaluate this meet-and-confer demand with that understanding.

I am offering an opportunity to resolve this matter before the Court must do so. I urge you to take it seriously.

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928 P: 650.488.7510 E: soltrinox@gmail.com

cc: CSAA Insurance Exchange, c/o Counsel of Record Michael R. Chambers, Esq. / Carbone, Smith & Koyama, c/o Counsel of Record File